

DISCOVERY HOMEOWNERS ASSOCIATION, INC (DHOA)

RECREATION CENTER RENTAL CONTRACT/RELEASE (DISCOVERY RESIDENTS ONLY)

Prior to the Event (Must be Current on Assessment)

1. Coordinate and pay the rental fee through the DHOA office no less than seven (7) days before the scheduled rental date. Receive the entrance door code.
2. Pay a deposit (check or cash) of One Hundred Dollars (\$100) no less than seven (7) days prior to the scheduled rental date. The renter is responsible for any damages to the Discovery Homeowners Association Recreation Center or its grounds (CENTER) during the rental period. DHOA will refund this deposit after the office manager has inspected the Center and has found the Center and its grounds in good condition. The deposit will be forfeited for exceeding the occupancy limit of the CENTER.
3. If a non-homeowner wishes to rent the Center, he/she must provide written permission from the landlord (see separate form). Such a form must be submitted at the time of the rental contract signing.

RENTAL FEES (Discovery Residents Only)

Two (2) hour minimum rental (\$60.00); \$20 for each additional hour. One (1) hour free for setup or clean up. The resident will be charged any additional hours for setting up. Please come only the hour before the party.

RENTAL RULES AND REGULATIONS

1. THE INDIVIDUAL WHO SIGNS THE CONTRACT MUST BE PRESENT ON THE PREMISES OF THE CENTER DURING THE ENTIRE RENTAL PERIOD.
2. **SMOKING AND ALCOHOLIC BEVERAGES ARE PROHIBITED ON THE CENTER PREMISES OR ITS GROUND.**
4. THE RENTER MAY NOT SUB-LET THE CENTER.
5. AVOID TAPING OR STAPLING DECORATIONS TO WALLS, FLOORS OR CEILING. RETURN THE CENTER TO ITS ORIGINAL CONDITION PRIOR TO VACATING AT THE END OF THE RENTAL PERIOD.
6. THE MAXIMUM OCCUPANCY OF THE CENTER IS FORTY-NINE (49) PERSONS. EXCEEDING THE POSTED OCCUPANCY IS A VIOLATION OF THE FREDERICK COUNTY FIRE CODE.
7. OPEN FLAMES OF ANY KIND, OR THE USE OF ANY COOKING, HEATING OR REHEATING EQUIPMENT IS PROHIBITED.
8. NO ANIMALS EXCEPT BONA FIDE SERVICE ANIMALS ARE ALLOWED ANYWHERE ON THE CENTER PREMISES.
9. DHOA DOES NOT ALLOW BICYCLES, SKATEBOARDS, ROLLER BLADES, OR ANY WHEELED VEHICLES ON THE CENTER PREMISES.
10. CONFINE MUSIC OR NOISE WITHIN THE BUILDING; THIS ACTIVITY MUST NOT CONSTITUTE PUBLIC NUISANCE.
11. **DHOA DOES NOT ALLOW PARKING ON THE GRASS OR ON THE MACADAM DRIVEWAY ADJACENT TO THE CENTER.**
12. CEASE RENTAL ACTIVITIES BY 12:30 AM. AND VACATE THE CENTER.
 - EMPTY ALL THE TRASH CANS AND REMOVE ALL THE TRASH FROM THE BUILDING AND GROUNDS. PLACE TRASH INTO THE PROPER OUTSIDE CONTAINERS NEXT TO THE BUILDING.
 - RETURN ALL FURNITURE TO ITS ORIGINAL LOCATION.
 - SWEEP DEBRIS FROM THE FLOOR.
 - SET THE THERMOSTAT AT 60 DEGREES IN THE WINTER MONTHS AND AT 85 DEGREES IN THE SUMMER MONTHS BEFORE LEAVING THE CENTER.
 - LOCK ALL DOORS AND WINDOWS AND TURN OFF ALL LIGHTS.

I/WE, _____ OF _____
HAVE SUBMITTED MY/OUR REQUEST TO RENT THE CENTER ON _____
FROM _____ TO _____
TYPE OF EVENT _____

I FURTHER AGREE FOR MYSELF, MY HEIRS, PERSONAL REPRESENTATIVES AND ADMINISTRATORS, TO NOT SUE AND TO RELEASE, DEFEND, INDEMNIFY AND HOLD HARMLESS DISCOVERY HOMEOWNERS ASSOCIATION, INC., ITS OFFICERS, DIRECTORS, VOLUNTEERS, EMPLOYEES AND AGENTS FROM ANY AND ALL LIABILITY, CLAIMS, DEMANDS LOSSES, COSTS AND EXPENSES (INCLUDING ATTORNEY'S FEES AND COURT COSTS) AND CAUSES OF ACTION WHATSOEVER ARISING OUT OF ANY DAMAGE, LOSS, OR INJURY TO MYSELF OR MY GUESTS OR OTHERS, DURING, OR IN ANY WAY RELATED TO THE RENTAL OF USE THE CENTER, WHETHER THE CLAIMS ARE FOR PERSONAL INJURY, DEATH, DAMAGE TO PERSONAL PROPERTY OR OTHERWISE AND WHETHER THE CLAIMS RESULT FROM NEGLIGENCE OF DISCOVERY HOMEOWNERS ASSOCIATION, INC., ITS OFFICER, DIRECTORS, VOLUNTEERS, EMPLOYEES OR AGENTS OR FROM ANY OTHER CAUSE. THE AFORESAID OBLIGATION TO DEFEND, INDEMNIFY AND HOLD HARMLESS INCLUDES PAYMENT OF ALL EXPENSES, DEFENSE COSTS, AND ATTORNEY'S FEES INCURRED IN CONNECTION WITH ANY CLAIM, ACTION OR OTHER PROCEEDINGS, AS WELL AS PAYMENT OF ALL SUMS DUE ON ANY JUDGMENTS OR SETTLEMENTS.

SIGNATURE OF RENTER(S) _____ DATE _____

PRINTED NAME OF RENTER(S) _____ DHQA STREET ADDRESS _____

RENTER'S TELEPHONE PHONE NUMBERS _____ RENTER'S EMAIL ADDRESS _____

RENTER'S PHOTO IDENTIFICATION

WITNESS-OFFICE MANAGER _____ DATE _____